

Satendra Singh v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 1 April 2014 · Writ-C No. 18954 of 2014 · **Second writ against same recovery notice dismissed as not maintainable**

HEADNOTE

A second writ challenging the same electricity recovery notice is not maintainable merely because the Executive Engineer has not decided the Clause 6.14 instalment application directed in the earlier writ.

FACTUAL SUMMARY

Satendra Singh challenged a recovery notice dated 29 August 2013. He had already filed Writ Petition No. 66737 of 2013 against the same notice, which this Court disposed of on 6 December 2013 directing him to apply under Clause 6.14 of the U.P. Electricity Supply Code, 2005 before the Executive Engineer. Alleging that the Executive Engineer had not decided that application, he filed this second writ petition challenging the same recovery notice.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

successive writ after clause 6.14 direction

HOLDING

Where an earlier writ against a recovery notice was disposed of with a direction to apply under Clause 6.14 before the Executive Engineer, a second writ challenging the same notice is not maintainable merely because that application has not been decided. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE 29.8.2013 RECOVERY NOTICE AND THE PENDING CLAUSE 6.14 APPLICATION

Petition dismissed as a successive writ; the Executive Engineer remains to decide the Clause 6.14 application. ¶ 1